

25CV04411 Reem Yassin vs Santa Barbara County et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-10

Motion: CMC; Demurrer; Motion: Strike

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Tentative Ruling: Reem Yassin vs Santa Barbara County et al

Case Number

25CV04411

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/10/2026 - 10:00

Nature of Proceedings

CMC; Demurrer; Motion: Strike

Tentative Ruling

Reem Yassin v. Santa Barbara County, et al.

Case No. 25CV04411

Hearing Date: August 10, 2026

HEARING: (1) Defendants' Demurrer to Plaintiff's Second Amended Verified Complaint

(2) Defendant Santa Barbara County's Motion to Strike Portions of Plaintiff's Second Amended Complaint

ATTORNEYS: For Plaintiff Reem Yassin: Douglas Han, Shunt Tatavos-Gharajeh, Talia Lux, Justice Law Corporation

For Defendants Santa Barbara County, Tracy Macuga, Diane Engler, Kelly Lazarus, Deepak Budwani, Matthew Sperdelozzi, Callie Steele, La Mer Kyle-Griffiths, Rachel Puleo, and Mindi Boulet: Rachel Van Mullen, April E. Navarro, Office of the County Counsel

TENTATIVE RULING:

1. Defendants' demurrer to the eighth, ninth, tenth, and eleventh causes of action of plaintiff's second amended complaint is sustained without leave to amend.
2. Santa Barbara County's motion to strike portions of plaintiff's second amended complaint is granted in part and denied in part as follows:
 - a. As the demurrer to the eighth cause of action is being sustained without leave to amend, the motion to strike portions of that cause of action (paragraph No. 194) is moot.
 - b. The words "thereby justifying the award of punitive and exemplary damages, against Defendants in an amount to be determined at trial" are stricken from paragraph Nos. 144, 159, and 169.
 - c. Paragraph No. 153 shall be amended to reflect that plaintiff is only seeking punitive damages against the individual defendants.
 - d. The prayer for relief shall be amended to reflect that plaintiff is only seeking punitive damages as against the individual defendants.
 - e. The motion to strike is in all other respects denied.
3. Plaintiff shall file and serve her third amended complaint no later than August 24, 2026.

Background:

This action commenced on July 15, 2025, by the filing of the original complaint by plaintiff Reem Yassin against Santa Barbara County (the "County") and the Santa Barbara Public Defender (the "SBPD") for: (1) Violation of the California Fair Employment and Housing ACT ("FEHA") - Unlawful Discrimination on the Basis of Disability; (2) FEHA - Unlawful Harassment Based on Disability; (3) FEHA - Unlawful Retaliation; (4) FEHA - Failure to Prevent Discrimination, Harassment, or Retaliation; (5) FEHA - Failure to Engage in a Good Faith Interactive Process; (6) FEHA - Failure to Provide Reasonable Accommodations; (7) Hostile Work Environment; (8) Violation of California Civil Code section 56.20; (9) Wrongful Termination in Violation of Public Policy; (10) Negligent Inducement of Employment; (11) Intentional Infliction of Emotional Distress; (12) Negligent Infliction of Emotional Distress; and (13) Declaratory Judgment.

Prior to any answers being filed, on September 2, 2025, plaintiff filed her first amended complaint ("FAC") alleging the same causes of action but adding as defendants Tracy Macuga, Dee Engler, Kelly Lazarus, Deepak Badwani, Matthew Sperdelozzi, Callie Steele, La Mer Kyle-Griffiths, Rachel Puleo, and Mindi Boulet. (Note: Plaintiff has acknowledged that some of the defendants were designated by incorrect names and have filed amendments that correct the mis-designations.)

The substantive factual allegations of the FAC appeared in 130 paragraphs, and were set forth in a narrative fashion which included numerous and highly detailed factual allegations and, at times, lacked chronological consistency.

Briefly, the FAC alleged that plaintiff has a hearing disability which requires plaintiff to wear hearing aids and to utilize assistive equipment. (FAC, ¶¶ 12 & 14.) On October 30, 2023, plaintiff became employed as a public defender with the Santa Barbara County Public Defender's office (the SBPD). (FAC, ¶ 8.) Plaintiff disclosed her hearing disability to the SBPD, and informed the SBPD that plaintiff wore hearing aids and would require assistive equipment to perform her job duties. (FAC, ¶¶ 12-16.) Ultimately, no accommodations were made. (FAC, ¶ 16.)

The FAC further alleged that, during her employment with the SBPD, plaintiff endured hostility, bullying, harassment, and discrimination as a result of her disability and the failure of the SBPD to make basic accommodations to ensure plaintiff could satisfactorily obtain training and perform her job duties. (See, e.g., FAC, ¶ 18-22.) Among other things, plaintiff's requests for accommodations were not implemented, nor did the SBPD perform an interactive process, provide any alternative accommodations, or do anything to prevent the working environment from growing hostile or harassing to plaintiff due to her disability. (FAC, ¶¶ 29-35, 36-37, 128-131.) In addition, despite representations made to plaintiff that she would be assigned to the misdemeanor trial department, plaintiff was not transferred to that department until approximately five months into her employment. (FAC, ¶ 18.)

Plaintiff was moved to the misdemeanor department on March 25, 2024, two weeks before her employment ended. (FAC, ¶ 61.) Being unable to consistently perform her job duties without reasonable accommodation, plaintiff was left with no choice but to resign almost six months into her employment with SBPD, when it became clear no reasonable accommodations would be forthcoming. (FAC, ¶ 132.)

On October 13, 2025, plaintiff separately filed three amendments to the FAC to correct Engler's first name to "Diane", to correct the last name of defendant Matthew Sperdelozzi's name to "Sperdelozzi", and to correct defendant Deepak Badwani's last name to "Budwani".

On October 31, 2025, the County, Macuga, Engler, Lazarus, Budwani, Sperdelozzi, Steele, Kyle-Griffiths, and Puleo (collectively, the "County Defendants") filed a demurrer to the first, third, fourth, fifth, sixth, seventh, ninth, tenth, eleventh, twelfth, and thirteenth causes of action alleged in the FAC.

On December 4, 2025, Boulet filed a demurrer joining in that of the County Defendants as to the seventh cause of action only.

Plaintiff opposed the demurrers.

On February 9, 2026, the court partially sustained and partially overruled the demurrers as follows:

"(1) The demurrer of defendants the County of Santa Barbara, Tracy Macuga, Diane Engler, Kelly Lazarus, Deepak Budwani, Matthew Sperdelozzi, Callie Steele, La Mer Kyle-Griffiths and Rachel Puleo, to plaintiff's first amended complaint is sustained as to the first, third, fourth, fifth, sixth, and ninth causes of action alleged against Tracy Macuga, Diane Engler, Kelly Lazarus, Deepak Budwani, Matthew Sperdelozzi, Callie Steele, La Mer Kyle-Griffiths and Rachel Puleo only; and as to the seventh, tenth, eleventh, and twelfth causes of action, with leave to amend.

(2) The demurrer of defendant Mindi Boulet to plaintiff's first amended complaint is sustained as to the seventh cause of action, with leave to amend." (February 9, 2026 Minute Order.)

On February 23, 2026, plaintiff filed her operative second amended complaint ("SAC") removing the seventh cause of action for hostile work environment and modifying which defendants certain causes of action are alleged against, but otherwise

alleging the same causes of action. Specific allegations that were added by way of the amendment will be discussed below where relevant.

The County, Macuga, Engler, Lazarus, Budwani, Sperdelozzi, Steele, and Kyle-Griffiths now demur to: (1) The eighth cause of action for Wrongful Termination against the County; (2) The ninth cause of action for Negligent Misrepresentation of Employment Contract against Macuga; (3) The tenth cause of action for Intentional Infliction of Emotional Distress against Macuga, Engler, Lazarus, Budwani, Sperdelozzi, Steele, and Kyle-Griffiths; and (4) The eleventh cause of action for Negligent Infliction of Emotional Distress against Macuga, Engler, Lazarus, Budwani, Sperdelozzi, Steele, and Kyle-Griffiths.

The County now also moves to strike portions of plaintiff's SAC

Plaintiff has filed an omnibus opposition to the demurrer and the motion to strike. Plaintiff asks the court to overrule the demurrer in its entirety but agrees that some portions of the SAC should be stricken.

Analysis:

Demurrer

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc., § 430.30, subd. (a).)

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

"(a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading.

"(b) The person who filed the pleading does not have the legal capacity to sue.

"(c) There is another action pending between the same parties on the same cause of action.

"(d) There is a defect or misjoinder of parties.

"(e) The pleading does not state facts sufficient to constitute a cause of action.

"(f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible.

"(g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.

"(h) No certificate was filed as required by Section 411.35." (Code Civ. Proc., § 430.10.)

The moving defendants bring the demurrer, as to each of the challenged causes of action under subdivision (e), arguing that the SAC does not state facts sufficient to constitute a cause of action.

"[A] court must treat a demurrer as admitting all material facts properly pleaded, it does not, however, assume the truth of contentions, deductions or conclusions of law." (*Travelers Indem. Co. of Connecticut v. Navigators Specialty Ins. Co.* (2021) 70 Cal.App.5th 341, 358, citing *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.)

Eighth Cause of Action for Wrongful Termination in Violation of Public Policy:

As noted above, the eighth cause of action is alleged only against the County. The County is a public entity.

"Except as otherwise provided by statute:

(a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.

(b) The liability of a public entity established by this part (commencing with Section 814) is subject to any immunity of the public entity provided by statute, including this part, and is subject to any defenses that would be available to the public entity if it were a private person." (Gov. Code, § 815.)

"The Government Claims Act (§ 810 et seq.) establishes the limits of common law liability for public entities, stating: " 'Except as otherwise provided by statute: [¶] (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.' " (§ 815, subd. (a), italics added.) The Legislative Committee Comment to section 815 states: " 'This section abolishes all common law or judicially declared forms of liability for public entities, except for such liability as may be required by the state or federal constitution, e.g., inverse condemnation. . . .' " [Citation.] Moreover, our own decisions confirm that section 815 abolishes common law tort liability for public entities. [Citations.]" (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899 (*Miklosy*)).

" ' "Public entity" ' includes the state, the Regents of the University of California, the Trustees of the California State University and the California State University, a county, city, district, public authority, public agency, and any other political subdivision or public corporation in the State." (Gov. Code, § 811.2.)

With respect to a public entity, and their employees, there are specific pleading requirements. A public entity has no liability for any injury to any person except as provided by statute. (Gov. Code, § 815; *Tuthill v. City of San Buenaventura* (2014) 223 Cal.App.4th 1081, 1089.) Claims based upon statutory liability cannot be generally alleged, but must be particularly pled to allege facts demonstrating the right to recover under the statute. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.)

"[I]n California all government tort liability is dependent on the existence of an authorizing statute or " 'enactment' " [citations], and to state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty. [Citation.] Duty cannot be alleged simply by stating " 'defendant had a duty under the law' "; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged. [Citations.] Since the duty of a governmental agency can only be created by statute or " 'enactment,' " the statute or " 'enactment' " claimed to establish the duty must at the very least be identified." (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.)

The County argues that wrongful termination in violation of public policy is not a statutory cause of action, but rather a common law cause of action that is barred

Plaintiff argues that her wrongful termination claim is a statutory claim because it is based on FEHA violations and therefore not barred. In support of the argument, plaintiff references paragraph No. 190 of the SAC which alleges: "At all times herein, Plaintiff was subjected to working conditions that violated public policy, including, but not limited to, violations of her rights under the FEHA, among other statutory and constitutional rights."

Plaintiff references no specific code section under FEHA, or any other Act, that supports her claim that the wrongful termination cause of action is statutorily permitted against a government agency.

There is no dispute that a cause of action for wrongful discharge in violation of public policy is a common law "Tameny" claim. (Tameny v. Atlantic Richfield Co. (1980) 27 Cal.3d 167; Leibert v. Transworld Systems, Inc. (1995) 32 Cal.App.4th 1693, 1702-1704.)

". . . "[Government Code] section 815 bars Tamny actions against public entities.' " [Citation.] Accordingly, Lloyd's fifth cause of action against the County, a Tameny claim for wrongful termination in violation of public policy, fails to state a claim." (Lloyd v. County of Los Angeles (2009) 172 Cal.App.4th 320, 329.)

Plaintiff presents no cogent or persuasive argument that the claim is not barred. Simply adding the reference to FEHA under the cause of action does not change the character of the claim. It is a non-statutory, common law, claim that cannot be brought against the County because it is not based on an authorizing statute or enactment.

Further, constructive termination is already alleged under FEHA in the third cause of action for unlawful retaliation at paragraph No. 158, and the fourth cause of action for failure to prevent discrimination, harassment and retaliation at paragraph No. 163. A stand-alone common law cause of action for wrongful termination in violation of public policy is duplicative.

The demurrer to the eighth cause of action, on the basis that it is not a statutory cause of action, will be sustained without leave to amend.

Government Tort Claim:

The moving parties argue that the eighth, ninth, tenth, and eleventh causes of action are all barred as a matter of law because plaintiff did not comply with the requirements of the Government Claims Act.

"Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division." (Gov. Code, § 945.4.)

"If a complaint does not allege facts showing that a claim was timely made, or that compliance with the claims statutes is excused, it is subject to demurrer." (J.M. v. Huntington Beach Union High School Dist. (2017) 2 Cal.5th 648, 652.)

Plaintiff acknowledges that: "There is no dispute Plaintiff did not file a Government Tort Claim." (Opp., p. 4, l. 9.)

Initially, plaintiff correctly points out that FEHA claims against governmental agencies are exempted from the general requirements of the Tort Claims Act. (Opp., p. 5, ll. 11-12.) (Snipes v. City of Bakersfield (1983) 145 Cal.App.3d 861, 865.)

The causes of action alleging violations of FEHA are Nos. one through six. The causes of action being demurred to are not based on violations of FEHA. Therefore, the argument is irrelevant.

Plaintiff then argues that the causes of action fall within an exception to the requirements of the Government Tort Claims Act because the allegations are that, particularly with the tenth and eleventh causes of action, the employee defendants acted outside the scope of their employment. The allegations of the SAC show otherwise. In fact, at paragraph Nos. 5 and 149 of the SAC, plaintiff specifically alleges that each of the defendants was acting within the course and scope of their employment.

In amending, following the sustaining of the demurrer to the FAC, plaintiff simply added conclusory language, for the tenth and eleventh causes of action that: "the conduct of Defendants described herein was committed outside the scope of Defendants' employment." (SAC, ¶¶ 205, 210.) This conclusory language is not enough. There are no specific facts alleged as to how the acts occurred outside the scope of the individual defendants' employment. The allegations, and all reasonable inferences that can be derived therefrom, are that the defendants were at work and all of the alleged actions took place as part of the normal employer-employee relationship and plaintiff was not excused from timely filing a Government Tort Claim.

Next, plaintiff makes a brief argument that compliance is excused because of the FEHA administrative process provided defendants with actual and constructive notice of the basis for the claim. This argument fails as well.

By way of the SAC, plaintiff admits that she did not file a Government Claims Act but alleges the compliance is excused based on substantial compliance, because: "Substantial compliance has been achieved through the Fair Employment and Housing Act (FEHA) administrative process. Plaintiff timely filed her administrative complaint with the DFEH and received a right-to-sue under the FEHA . . . (SAC, ¶ 201.)

Serving a Government Claim on the improper entity does not satisfy, or substantially comply with, the Government Claims Act. (*Westcon Construction Corp. v. County of Sacramento* (2007) 152 Cal.App.4th 183, 203-204.)

Plaintiff was required to, but did not, timely file a Government Tort Claim with the County. That failure is fatal to the eighth, ninth, tenth, and eleventh causes of action, and the demurrer to those causes of action will be sustained. Because the time to present a Government Tort Claim regarding those causes of action has expired, there is no possibility of plaintiff further amending the causes of action to survive demurrer. Leave to amend will be denied.

Finally, and in the alternative, plaintiff's tenth and eleventh cause of action are barred by the workers' compensation exclusivity rule.

As in *Miklosy*, supra,: "Plaintiffs allege defendants engaged in " 'outrageous conduct' " that was intended to, and did, cause plaintiffs " 'severe emotional distress,' " giving rise to common law causes of action for intentional infliction of emotional distress. The alleged wrongful conduct, however, occurred at the worksite, in the normal course of the employer-employee relationship, and therefore workers' compensation is plaintiffs' exclusive remedy for any injury that may have resulted. [Citations.]"

Motion to Strike

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading." (Code Civ. Proc., § 436.) "Irrelevant matter" includes a "demand for judgment requesting relief not supported by the allegations of the complaint." (Code Civ. Proc., § 431.10, subds. (b)(3), (c).) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437, subd. (a).)

"In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.)

"[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

The County seeks to strike the following portions of the SAC:

First Cause of Action, page 20, paragraph 143: "The harassment against Plaintiff was condoned, permitted, and encouraged by Defendants and Does 1 through 100, and each of them, in a manner which was grossly negligent, willful, malicious and deliberately indifferent to the Plaintiff's personal rights to a discrimination and harassment free work environment and safety in the workplace."

First Cause of Action, page 20, paragraph 144: "Plaintiff alleges that the Defendants, and each of them, individually and/or by the acts of their managing agents, officers and/or directors in the aforementioned acts and/or ratifying such acts, engaged in willful, malicious, intentional, oppressive and despicable conduct, and acted with willful and conscious disregard of the rights, welfare and safety of Plaintiff, thereby justifying the award of punitive and exemplary damages, against Defendants in an amount to be determined at trial."

Second Cause of Action, page 22, paragraph 152: "The disability harassment against Plaintiff was condoned, permitted, and encouraged by Defendants and Does 1 through 100, and each of them, in a manner which was grossly negligent, willful, malicious and deliberately indifferent to the Plaintiff's personal rights to a discrimination and harassment free work environment and safety in the workplace."

Second Cause of Action, page 22, paragraph 153: "Plaintiff alleges that the Defendants, and each of them, individually and/or by the acts of their managing agents, officers and/or directors in the aforementioned acts and/or ratifying such acts, engaged in willful, malicious, intentional, oppressive and despicable conduct, and acted with willful and conscious disregard of the rights, welfare and safety of Plaintiff, thereby justifying the award of punitive and exemplary damages, against Defendants in an amount to be determined at trial."

Third Cause of Action, page 24, paragraph 159: "Plaintiff alleges that the Defendants, and each of them, individually and/or by the acts of their managing agents, officers and/or directors in the aforementioned acts and/or ratifying such acts, engaged in willful, malicious, intentional, oppressive and despicable conduct, and acted with willful and conscious disregard of the rights, welfare and safety of Plaintiff, thereby justifying the award of punitive and exemplary damages, against Defendants in an amount to be determined at trial."

Fourth Cause of Action, page 26, paragraph 169: "Plaintiff alleges that the Defendants, and each of them, individually and/or by the acts of their managing agents, officers and/or directors in the aforementioned acts and/or ratifying such acts, engaged in willful, malicious, intentional, oppressive and despicable conduct, and acted with willful and conscious disregard of the rights, welfare and safety of Plaintiff, thereby justifying the award of punitive and exemplary damages, against Defendants in an amount to be determined at trial."

Eighth Cause of Action, page 30, paragraph 194: "Plaintiff alleges that the Defendants, and each of them, individually and/or by the of their managing agents, officers and/or directors in the aforementioned acts and/or ratifying such acts, engaged in willful, malicious, intentional, oppressive and despicable conduct, and acted with willful and conscious disregard of the rights, welfare and safety of Plaintiff, thereby justifying the award of punitive and exemplary damages, against Defendants in an amount to be determined at trial."

Prayer for Relief, page 37, subdivision E: "For punitive damages as allowed by law."

The motion to strike as to the eighth cause of action is moot due to the court sustaining the demurrer to the cause of action without leave to amend.

By way of opposition to the motion to strike, plaintiff agrees with the motion as follows:

"Plaintiff does not dispute that language in the prayer for relief seeking punitive damages should be stricken. Plaintiff likewise does not dispute that the language under the specific causes of action notating Defendants' conduct justifies " 'the award of punitive and exemplary damages[]' " should be stricken, as the Court previously found." (Opp, p. 2, l. 22 - p. 3, l. 2.)

Plaintiff argues that the descriptive terms such as "willful," "malicious," "intentional," "oppressive," etc. are merely factual characterizations of the alleged conduct.

In reply, the County argues that the first, third, fourth, and eighth causes of action are only asserted against the County and, because punitive damages are not allowed as to the County, the above described sections should be stricken.

As to the second cause of action, because it is asserted against all defendants, the County argues that the language should be stricken, and plaintiff should be ordered to amend the language to specify that the request for punitive damages be directed only as to the individual defendants.

The court agrees that the first, third, and fourth causes of action should be stricken to remove the language: "thereby justifying the award of punitive and exemplary damages, against Defendants in an amount to be determined at trial," should, and will be stricken. The descriptive language will not be stricken.

For the second cause of action, plaintiff will be ordered to amend paragraph 153 to reflect that she is only seeking punitive damages as against the individual defendants. Plaintiff will also be ordered to amend the prayer for relief to reflect that she is only seeking punitive damages against the individual defendants.

Judges

Judge Colleen Sterne

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